

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MSRF, INC., *Complainant*

v.

YANG MING TRANSPORT CO., *Respondent*.

DOCKET NO. 22-21

Served: March 20, 2023

ORDER OF: Linda S. Harris Crovella, *Administrative Law Judge*.

SECOND AMENDED SCHEDULING ORDER

On March 16, 2023, Complainant MSRF filed a Conditional Consent Motion to Amend Scheduling Order (“Second Motion to Amend”) seeking an extension of time to comply with the February 24, 2023, Order on Motions to Compel and Related Motions (“Order on Motions to Compel”). On March 17, 2023, Respondent filed Respondent’s Response to Complainant’s Motion to Amend Scheduling Order (“Response to Motion to Amend”).

Complainant asserts that all but one item has been provided pursuant to discovery, and that last item requires information from MSRF’s “overseas suppliers who are more directly involved in booking shipments.” It further asserts that the other attorneys in Complainant’s primary counsel’s firm are “involved in a complex bench trial” in district court or are “likewise unable to assist...in the preparation of the brief.” Second Motion to Amend at 1.

Respondent agrees “in principle” with the motion, but only “*if* the Presiding Officer makes an appropriate adjustment of the due date for Respondent’s Reply Brief” (emphasis in original). Response to Motion to Amend at 1.

This is the second time Complainant has sought an extension of time to complete discovery and to file briefs. *See* Conditional Consent Motion to Amend Scheduling Order (“First Motion to Amend”), filed December 7, 2022, proposing March 17, 2023, for discovery to end, and April 28, 2023, June 2, 2023, and June 16, 2023 due dates for the Complainant’s initial brief, Respondent’s opposition brief, and Complainant’s reply, respectively. While the First Motion to Amend was denied, I note that Complainant currently seeks an extension that results in filing its brief on April 21, a week earlier than proposed in the First Motion to Amend, and that Respondent file its opposition nearly two weeks after the June 2, 2023, date proposed in the First Motion to Amend.

Complainant asserts and Respondent does not refute that the majority of discovery is complete, and only one item is outstanding. Respondent received 5,775 pages of documents

responsive to its initial discovery requests by January 6, 2023. Motion to Compel Responses to Interrogatories and to Order New Answers to Requests for Admission at 1, fn. 1. By January 30, 2023, Respondent appears to have completed review of those documents because it filed a Motion to Compel Production of Documents indicating more responsive documents should be produced. The February 24, 2023, Order on Motions to Compel and Related Motions required Complainant to respond further to interrogatories, and to produce more documents pursuant to the two motions to compel.¹ Based on Complainant's Second Motion to Amend, it has complied with that order but for the one document that requires information from overseas suppliers.

I do not condone Complainant's failure to file motions or responses to motions in a timely manner, or to fully abide by the order as revised by the video conference to provide all the outstanding discovery by March 10, 2023. Moreover, the last document is integral to the arguments of both parties.

Respondent argues that because it provided its discovery requests to Complainant by the original February 17, 2023, deadline that Complainant will have from that date to the proposed April 21, 2023, date to write its initial brief, but does not accord that same ability to begin its preparation of its opposition brief until receipt of Complainant's brief.

The proposals regarding the brief due dates in both the First Motion to Amend and the Second Motion to Amend are based in part on accommodating a travel conflict with one of Respondent's counsel in May 2023, and Respondent reiterates this concern for accommodation in its response to the current motion. Respondent first asserted in its Motion for Reconsideration filed on December 13, 2022, that "Mr. Jeffrey, its experienced litigator, will be out of town until May 17, 2023, on a longstanding family matter than cannot now be changed." Motion for Reconsideration at 8. On January 30, 2023, in its Motion to Compel Production of Documents, Respondent advised that "Mr. Jeffrey's absence [will be] from May 9, 2023 through May 21, 2023." Motion to Compel production of Documents at 1, fn 1. In its March 17, 2023, Response to Motion to Amend, Respondent now alleges that Mr. Jeffrey will be unavailable *through* May 22, 2023, which is a Monday.

Regardless of which day counsel will return in May, both Complainant and Respondent can begin work on their briefs in advance of the last production of evidence; neither party is more prejudiced than the other by this. Complainant is unable to use the evidence in its initial brief until it has the evidence in hand, so it has arguably put itself in a more precarious position than Respondent. Further, assuming Respondent does not begin its brief until March 24, 2023, the date the last discovery item will be provided, Respondent has until May 7, or 6 weeks, to begin its proposed findings of fact and argument, and two weeks to begin addressing Complainant's proposed findings of fact upon receipt of Complainant's brief on April 21. Upon return from travel, Respondent will have two more weeks to complete its brief if it is due June 2, for a total of 8 weeks during which it can work on the opposition brief. Complainant, meanwhile, will have four weeks from submitting the last of its discovery production to filing of the brief, and two weeks upon receipt of Respondent's opposition to reply, resulting in

¹ The Order required Complainant to respond to outstanding discovery requests by March 6, 2023; in a video conference between the parties that date was extended to March 10, 2023. Despite being cautioned to file motions prior to the expiration of deadlines, Complainant filed the instant motion on March 14, 2023. Order on Motions to Compel and Related Motions at 13-14.

Complainant having two fewer weeks to submit briefs than Respondent. Given that Complainant is primarily the cause of the delays, this timing is reasonable.

Even if Complainant fails to provide the discovery by the deadline required below, the schedule will not be further amended, and no further extensions of time will be granted. The parties may argue in their briefs regarding whether sanctions, such as adverse inferences, are appropriate due to any alleged discovery violations.

Respondent will now receive Complainant's brief a week earlier than had been proposed and agreed upon by the parties in December 2022, which adequately accommodates Respondent's counsel's absence in May, and keeps Complainant within a more reasonable schedule. Accordingly, Complainant has established good cause to amend the schedule, but only to the extent found below.

The parties are hereby **ORDERED** to follow this schedule:

March 24, 2023	Complainant provides the information regarding what shipments were refused by Yang Ming and whether MSRF requested space for those shipments from other carriers with whom MSRF had service contracts, or with other carriers.
April 21, 2023	Complainant's brief, proposed findings of fact, and appendix
June 2, 2023	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
June 16, 2023	Complainant's reply brief and responses to proposed findings of fact



Linda S. Harris Crovella
Administrative Law Judge